

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

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SEAN SMITH,

Plaintiff(s),

Date Purchased:

Index No.

Plaintiff designates

New York County as the place of trial

The basis of venue is place of

Occurrence

-against-

**S U M M O N S**

THE CITY OF NEW YORK,

Defendants.

Plaintiff resides at

4514 Avenue D

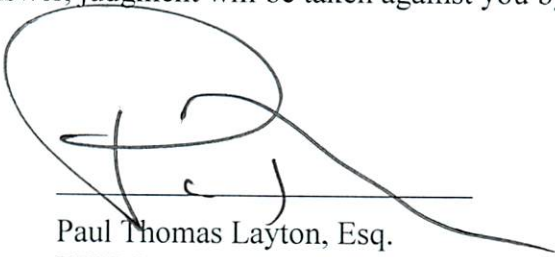
Brooklyn, New York 11203

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***TO THE ABOVE NAMED DEFENDANTS:***

**YOU ARE HEREBY SUMMONED** and required to answer to the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance, on the Plaintiff's attorney within twenty (20) days after service of this summons, exclusive of the day of service (or within thirty (30) days after service is complete if service is made by any method other than personal delivery to you within the State of New York). In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York  
February 11, 2014

  
\_\_\_\_\_  
Paul Thomas Layton, Esq.

**THE LAW OFFICES OF  
PAUL THOMAS LAYTON, P.C.**

*Attorneys for the Plaintiff*

30 Vesey Street Suite 1803

New York, New York 10007

(212) 227-1104

**Defendant's Address**

One Centre Street

Municipal Building

New York, NY 10007

CORPORATION COUNSEL OF THE CITY OF NEW YORK

100 Church Street

New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK  
NEW YORK COUNTY

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SEAN SMITH,

Plaintiff,

**COMPLAINT**

-v-

**JURY TRIAL  
DEMANDED**

THE CITY OF NEW YORK,

Defendants.

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**PRELIMINARY STATEMENT**

1. This is an action brought to vindicate Plaintiff's rights under New York State law for negligence, assault, battery, false arrest and imprisonment, and negligent hiring, screening, retention and training.
2. Plaintiff SEAN SMITH's rights were violated when officers of the NEW YORK CITY POLICE DEPARTMENT ("NYPD") unconstitutionally and without any legal basis searched, seized, detained, arrested and used gratuitous, unlawful force against the plaintiff. By reason of defendants' actions, including their unreasonable and unlawful conduct, wanton and unnecessary use of force, protracted seizure, and malicious prosecution, plaintiff was deprived of his rights.
3. Plaintiff seeks an award of compensatory damages and costs and disbursements.

**NOTICE OF CLAIM**

4. On April 17, 2013, plaintiff caused a Notice of Claim to be served upon defendant THE CITY OF NEW YORK.

5. The Notice of Claim was delivered to the person designated by law as a person to whom such claims may be presented and served.
6. The Notice of Claim was in writing, sworn to by or on behalf of the Plaintiff, and contained the name and post office address of the Plaintiff and Plaintiff's attorney, the nature of the claim, the time when the place where and the manner by which the claim arose, and the damages and injuries claimed to have been sustained.
7. On January 22, 2014, Plaintiff appeared for a hearing pursuant to General Municipal Law 50-h.
8. Defendant CITY OF NEW YORK has failed and refused to pay and/or adjust the claim within the statutory period of time.
9. This action has been commenced within one year and ninety days of the occurrence upon which the claim is based.
10. Plaintiff has complied with all conditions precedent applicable to the instant action.

### **PARTIES**

11. Plaintiff SEAN SMITH is, and was at all times relevant to this action, a resident of the County of Brooklyn in the State of New York.
12. Defendant, THE CITY OF NEW YORK, is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The Defendant assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by NYPD.



13. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.
14. At all relevant times, the defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

#### **STATEMENT OF FACTS**

15. On January 26, 2013, SEAN SMITH was walking on Bleecker Street in Manhattan toward the subway station on West 4<sup>th</sup> Street and 6<sup>th</sup> Avenue.
16. An unmarked police vehicle drove past SEAN SMITH, then stopped abruptly and drove in reverse until it was adjacent to SEAN SMITH.
17. Three police officers exited the unmarked police vehicle. One of the three was in uniform and the other two were in plainclothes.
18. Upon information and belief, one of the three officers was P.O. DONES, Shield 27390.
19. Upon information and belief, one of the three officers was P.O. MAUCELI, Shield 28367.
20. The officers ordered SEAN SMITH to "put your hands on the wall."
21. SEAN SMITH asked the officers, in substance, "Why? What did I do?"

22. The officers responded to SEAN SMITH's question by ordering him to "shut the fuck up."
23. The officers walked up to SEAN SMITH and physically forced him against the wall using dragging, throwing, and pushing.
24. The officers immediately placed SEAN SMITH in handcuffs.
25. After illegally detaining SEAN SMITH, the officers conducted an illegal search of SEAN SMITH's person.
26. Between 4:00 A.M. and 5:00 A.M., the officers placed SEAN SMITH in the police vehicle and transported him to the 6<sup>th</sup> Precinct.
27. At the 6<sup>th</sup> Precinct police station, five officers, including the three who originally stopped him, took SEAN SMITH into the bathroom and conducted a strip search, in which he was ordered to remove all of his clothing.
28. SEAN SMITH complied with the officers' orders during the strip search.
29. No contraband was found as a result of the strip search.
30. After the strip search, SEAN SMITH was put in a cell in the 6<sup>th</sup> Precinct where he was held until between approximately 8:00 A.M. and 9:00 A.M. when he moved to Central Booking.
31. At Central Booking, SEAN SMITH was placed in a holding cell and remained there until approximately 1:00 A.M. on January 27<sup>th</sup>.
32. At about 1:00 A.M., SEAN SMITH was brought before a judge for an arraignment.
33. All charges against SEAN SMITH were dismissed upon motion of the District Attorney at the arraignment.

**FIRST CLAIM**  
**FALSE ARREST AND ABUSE OF PROCESS**  
**UNDER THE LAWS OF THE STATE OF NEW YORK**

34. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
35. On the aforesaid date and place, the defendant, THE CITY OF NEW YORK, its agents, servants and/or employees, intentionally confined the plaintiff SEAN SMITH and/or restricted SEAN SMITH's freedom of movement.
36. Plaintiff SEAN SMITH was conscious of said confinement and/or restriction.
37. Plaintiff SEAN SMITH did not consent to said confinement and/or restriction.
38. The confinement and/or constriction was not otherwise privileged.
39. By the actions described above, the defendant, THE CITY OF NEW YORK caused SEAN SMITH to be falsely arrested, without probable cause, illegally and without a warrant to arrest, without any right or authority to do so.
40. The individual conduct alleged herein occurred while they were on duty and in uniform, and/or in and during the course and scope of their duties and functions as NYPD police officers, and/or while they were acting as the CITY's agents and employees, clothed with and/or invoking state power and/or authority, and, as a result, the CITY is liable to Plaintiff for common law false arrest and abuse of process pursuant to the state common law doctrine of *respondeat superior*.
41. As a result of the foregoing, SEAN SMITH was deprived of his liberty, suffered bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured and is entitled to damages exceeding the jurisdiction of all lower courts.



**SECOND CLAIM  
ASSAULT AND BATTERY  
UNDER THE LAWS OF THE STATE OF NEW YORK**

42. Plaintiff incorporates by reference the allegations set forth in all previous paragraphs as if fully set forth herein.
43. In the course of effectuation the aforesaid arrest and imprisonment, the defendant, by its agents servants and/or employees engaged in acts which were intended to make contact with the person of the plaintiff SEAN SMITH.
44. The defendant, by its agents, servants and/or employees made an offensive contact with the person of the plaintiff SEAN SMITH.
45. The aforesaid acts of the defendant, its agents, servants and/or employees caused SEAN SMITH to apprehend and/or fear unfriendly contact.
46. By the actions described above, the defendant, THE CITY OF NEW YORK did inflict assault and battery upon Plaintiff.
47. The individual conduct complained of herein occurred while they were on duty and in uniform, and in and during the course and scope of their duties and functions as NYPD police officers, and while they were acting as the CITY's agents and employees, clothed with and/or invoking state power an authority, and as a result, the CITY is liable to Plaintiff for common law assault and battery pursuant to the state common law doctrine of *respondeat superior*.
48. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was

otherwise damaged and injured and is entitled to damages exceeding the jurisdiction of all lower courts.

**THIRD CLAIM**  
**NEGLIGENT HIRING, SCREENING, RETENTION, AND TRAINING**  
**UNDER THE LAWS OF THE STATE OF NEW YORK**

55. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

56. Defendant CITY negligently hired, screened, retained, supervised, and trained the individuals described above. Had the CITY adequately supervised and trained the individuals about the lawful scope of their duties and authority as police officers, they would not have subjected SEAN SMITH to wanton and excessive force, nor would they have illegally seized and searched his person, nor would they have falsely arrested him, all of which was unlawful and inappropriate conduct.

57. The defendants' acts and conduct were the direct and proximate cause of SEAN SMITH'S injuries and damages and violated his common law rights as guaranteed by the laws and Constitution of the State of New York.

49. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

WHEREFORE, the plaintiff demands judgment against the defendant and prays for relief as follows:

- a. That he be compensated for violation of his common law rights, pain, suffering, mental anguish, and humiliation, and
- b. That he be compensated for the costs and disbursements of this action, and

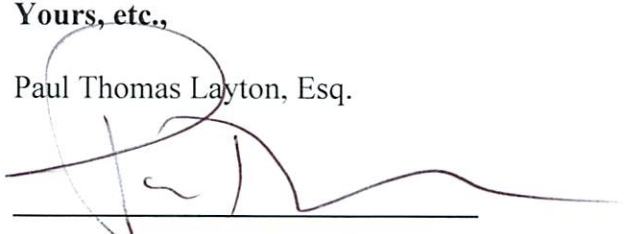


- c. For such other further and different relief as to the Court may seem just and proper.

**Dated: New York, New York  
February 11, 2014**

**Yours, etc.,**

Paul Thomas Layton, Esq.



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**THE LAW OFFICES OF  
PAUL THOMAS LAYTON, P.C.**  
*Attorney for the Plaintiff*  
30 Vesey Street Suite 1803  
New York, New York 10007  
(212) 227-1104

**ATTORNEY VERIFICATION**

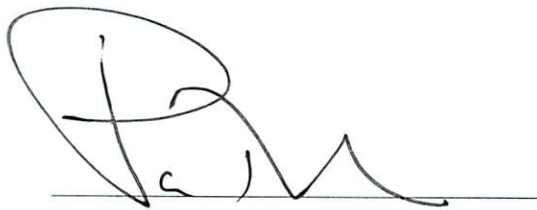
PAUL THOMAS LAYTON, an attorney at law duly admitted to practice before the courts of the State of New York, affirms under the penalties of perjury, the following:

I am the attorney of record for the plaintiff in the within action. I have read the foregoing Verified Complaint and know the contents thereof and, upon information and belief, I believe the matters alleged therein to be true.

The reason this verification is made by me and not by the plaintiff is that the plaintiff resides in a county other than the one in which I maintain my office which is New York County.

The source of my information and the grounds for my belief are communications, papers, reports and investigations contained in the file.

Dated: New York, New York  
February 11, 2014

A handwritten signature in black ink, appearing to read 'P. Layton', is written over a horizontal line.

Paul Thomas Layton, Esq  
**THE LAW OFFICES OF  
PAUL THOMAS LAYTON, P.C.**  
*Attorneys for the Plaintiff*  
30 Vesey Street Suite 1803  
New York, New York 10007  
(212) 227-1104

SUPREME COURT STATE OF NEW YORK  
COUNTY OF NEW YORK

Index#:

SEAN SMITH,

Plaintiff

against

THE CITY OF NEW YORK

Defendant

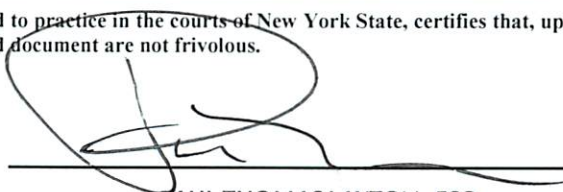
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SUMMONS AND VERIFIED COMPLAINT

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Pursuant to 22 NYCRR 130.1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: New York, New York  
February 11, 2014



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PAUL THOMAS LAYTON, ESQ.

THE LAW OFFICES OF PAUL THOMAS LAYTON, P.C.

Attorneys For Plaintiff(s)  
Office and Post Office Address, Telephone  
30 Vesey Street (Suite 1803)  
NEW YORK, NY 10007  
212-227-1104

To:

Service of a copy of the within is hereby  
admitted.

Dated:.....20.....

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PLEASE TAKE NOTICE:



NOTICE OF ENTRY

That the within is a true copy of an Order duly entered in the office of the clerk of the within named court on



NOTICE OF SETTLEMENT

that an order Type of Order - of which the within is a true copy will be presented for settlement to the HON. Judge - ,  
one of the judges of the within Court at

Dated:

Yours, etc.,

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PAUL THOMAS LAYTON, ESQ.